

NDIS Summary of FOI Decision Letter to Mr. Richard McLean

Date: 15 June 2021

From: Melissa Clements, Deputy Registrar, NDIS Quality and Safeguards Commission

To: Mr. Richard McLean

Subject: Freedom of Information (FOI) Request No. (36) 20/21-4

Background: Mr. Richard McLean submitted a Freedom of Information (FOI) request to the NDIS Quality and Safeguards Commission on 14 May 2021. After a phone conversation on 20 May to clarify scope, McLean revised his request, which subsequently led to parts being transferred to the National Disability Insurance Agency (NDIA) and parts being addressed by the Commission.

Revised Request Scope (Relevant Parts for the Commission):

1. Documents mentioning McLean or his business.
2. Complaints made about McLean or his business.
3. Records of threats by his former partner, who worked for ASIO, to ruin him by calling NDIS/NDIA.
4. Anything related to his work.

Commission's Decision and Reasons:

1. Documents Related to McLean/Business:

- **Request 5A:** Identified 9 documents; 7 granted access outside FOI process, 2 refused (conditionally exempt under s.47E(d) of the FOI Act due to potential adverse effects on agency operations).
- **Request 5B:** No complaints or reportable incidents found (documents do not exist as per s.24A(1)(b)(ii)).

2. Former Partner's Threats:

- No relevant documents located (request refused under s.24A(1)(b)(ii)).

3. General Work-Related Documents:

- Request considered a duplicate of previous ones; no documents located (request refused under s.24A(1)(b)(ii)).

Other Aspects Addressed:

- Parts (1), (2), (3), and (4) transferred to NDIA.
- Part 8 related to eligibility for working as an NDIS provider; provided general information on NDIS registration requirements.

Attachments:

- **Attachment A:** Schedule of Documents
- **Attachment B:** Review Rights

Review Rights: Mr. McLean can seek an internal review of the decision or an external review by the Australian Information Commissioner. Detailed steps for pursuing internal and external reviews are provided.

In summary, the response provides clarity on granted and refused documents, grounds for exemptions, and procedural guidance for reviews.

Processed 11 out of 11 pages across documents 2021.06.15 - Decision Letter to Rich McLean 2.pdf.

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